

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	24CV444665	Wilson Catalan vs. Ford Motor Company	See below
9:00 2	24CV446885	Albert O'Hara vs. Neelam Lopez	Plaintiff petitions this court to compel defendant to respond to form interrogatories and to award monetary damages for attorney costs. Defendant after receiving motion to compel did provide responses to form interrogatories. Plaintiff's petition to compel defendant to respond is MOOT. Since the answer did not come until Plaintiff's motion to compel was submitted, Plaintiff's motion for monetary damages is GRANTED.
9:00 3	25CV456446	Gurdeep Saluja vs. Hyundai Motor America	Defendant moves this court to compel Plaintiff for Deposition and Production of Documents. It appears that Defendant properly served notice on Plaintiff and dates had been agreed upon but Plaintiff refused to appear. Plaintiff has filed no opposition to Defendant's motion. Defendant's motion is GRANTED. Defendant's motion for monetary damages is GRANTED.
9:00 4	25CV461544	Wells Fargo Bank vs. Serena Marquez	Plaintiff moves this court for a judgment on the pleadings. Defendant owes Plaintiff \$6,183.17 on her credit card. Defendant filed no opposition to Plaintiff's motion. Plaintiff's motion is GRANTED
9:00 5	25CV465961	Mariner Finance vs. Vickie Hunter	Plaintiff moves this court to deem request for admissions to be deemed admitted. Plaintiff served Defendant with request for admissions on September 19, 2025, but Defendant never responded. Defendant filed no objection to Plaintiff's motion. Plaintiff's motion is GRANTED.
9:00 6	25CV474549	Cynthia Schwarting et al vs. Kyle Kwong, et.al.	See below
9:00 7	25CV479632	Melissa Bentz vs. James Bentz	See below
9:00 8	25CV481161	Hao Chen vs Zhipeng Lu	See below.
9:00 9	26CV493281	Vladimir Vedeneev vs. Roman Anin, et.al.	Defendant YouTube is ordered to show cause as to why a preliminary injunction should not be imposed. YouTube hosted a video that co-defendant Ronan Anin uploaded. A party who plays no role in an unlawful interception of a communication cannot be enjoined from publishing the resulting speech when it bears on a matter of public concern. <i>Bartnicki vs Vopper</i> , 532 U.S. 514 (2001). The videos addressed the security of a global messaging platform and is a matter of public concern as evident by the massive amounts of views. The First Amendment bars any claims for injunctive relief. A preliminary injunction in this matter is DENIED.
9:00 10	21CV3900666	Eric Hartman et.al. vs Koshy George	Defendant moves this court to award attorney fees and costs. Defendant was the prevailing party. Defendant's motion is GRANTED. Court seeks oral argument regarding amount of sanctions.
9:01 1	22CV397160	John Lam, et.al. vs The Signature Motors, LLC	Plaintiff's attorney moves to withdraw as counsel. There is no opposition filed. Plaintiff's attorney's motion is GRANTED.
9:01 2	23CV423813	Absolute Resolutions Investments, LLC vs Azim Uddin	Defendant moves this court for exemption from wage garnishment. No opposition was filed. Defendant claims that he needs all of his income to support his spouse and his son. This court agrees. Defendant's motion is GRANTED.

Calendar Line 1

Case Name: *Catalan v. Ford Motor Co., et al.*

Case No.: 24CV444665

Defendants Ford Motor Company and All Star Ford (collectively, “Defendants”) move for judgment on the pleadings on the first through fourth causes of action, asserting that “Plaintiff’s failure to respond to Ford’s Requests for Admission (‘RFAs’) resulted in a court order deeming them admitted... [and t]hose deemed admissions conclusively negate essential elements of Plaintiff’s Song-Beverly claims... claims for negligence and establish the absence of any recoverable damages.” (Defs.’ memorandum of points and authorities in support of motion for judgment on the pleadings (“Defs.’ memo”), p.3:9-13.) In support of their motion, Defendants presented a tentative ruling and a proposed order submitted on February 18, 2026 that “remains waiting for the final signature of the Court.” (Vanderhoof decl. in support of Defs.’ motion for judgment on the pleadings, ¶ 5.) Defendants did not request judicial notice of any order in connection with their motion. Thereafter, in connection with their reply brief, Defendants requested judicial notice of the March 10, 2026 order regarding the matters in the RFAs as conclusively established.

Here, Defendants did not present the March 10, 2026 order in connection with their motion. While the Court may, in addition to the facts pleaded, consider matters that are proper subjects of judicial notice, including a party’s admissions, the matter upon which the motion was premised was not presented. Indeed, the Vanderhoof declaration plainly states that Defendants did not have a final order regarding the matters in the RFAs. Instead, Defendants did not request judicial notice of the March 10, 2026 order until after Plaintiff had filed his opposition. The Court may not consider Defendants’ request for judicial notice, made for the first time in reply, as it violates Plaintiff’s due process rights. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316 (stating that “the evidence... was not filed until after